

## Ashwini Kumar Tiwari v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 22 August 2017 · WRIT - C No. - 37822 of 2017 · **Writ disposed; assessment remitted; clause 6.14 installments if dues paid.**

### HEADNOTE

A tubewell consumer facing Section 135 proceedings and a claimed provisional assessment, where it is unclear whether a final assessment has been made, must take the assessment grievance to the concerned authority, who shall examine it and pass appropriate orders. If the consumer is prepared to pay amounts that are due, the Executive Engineer shall invoke clause 6.14 of the U.P. Electricity Supply Code, 2005 to facilitate installments, having regard to the consumer being an agriculturist and the dues relating to tubewell supply. Bona fides include not pursuing a Section 156(3) Cr.P.C. complaint against departmental employees.

### FACTUAL SUMMARY

The petitioner held a tubewell electricity connection. After a theft was reported, proceedings were initiated under Section 135 of the Electricity Act, 2003. He applied for compounding and made deposits. The licensee also undertook provisional assessment and claimed the provisionally assessed amount. The pleadings did not show whether a final assessment had been completed. The petitioner had filed an application under Section 156(3) Cr.P.C. against employees of the Electricity Department and approached the High Court over the assessment and dues.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::6.14

installment facility for agriculturist tubewell dues after theft assessment

#### HOLDING

If the consumer is prepared to pay electricity dues that are due, the Executive Engineer shall invoke clause 6.14 of the U.P. Electricity Supply Code, 2005 to facilitate installments, keeping in view that the consumer claims to be an agriculturist and the dues relate to tubewell operation, even where those dues arise after Section 135 theft proceedings and a claimed provisional assessment. Assessment grievances, where it is unclear whether a final assessment has been made, are to be examined by the concerned authority, which shall pass appropriate orders. ¶ 1

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — WHETHER A FINAL ASSESSMENT HAD BEEN MADE, AND THE MERITS OF THE SECTION 135 ALLEGATION OR OF ANY ASSESSED AMOUNT

Pleadings did not show if final assessment was completed; respondent no. 2 was directed to examine the assessment grievance. ¶ 1